EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 2204/12
Lasha CHKHARTISHVILI
against Georgia

The European Court of Human Rights (Fourth Section), sitting on 30 June 2015 as a Committee composed of:

Paul Mahoney, *President,*
Nona Tsotsoria,
Faris Vehabović, *judges,*
and Fatoş Aracı, *Deputy Section Registrar,*

Having regard to the above application lodged on 7 December 2011,

Having regard to the declaration submitted by the respondent Government on 3 April 2015 requesting the Court to strike the application out of the list of cases and the applicant's reply to that declaration,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicant, Mr Lasha Chkhartishvili, is a Georgian national, who was born in 1980 and lives in Tbilisi. He was represented before the Court by Mr L. Tchintcharauli and Ms K. Bekauri, lawyers practising in Tbilisi.

2. The Georgian Government ("the Government") were represented by their Agent, Mr L. Meskhoradze, of the Ministry of Justice.

3. The facts of the case, as submitted by the parties, may be summarised as follows.

4. The applicant was arrested by the police at around 5 p.m. on 5 June 2011 in the centre of Tbilisi, nearby the building of Parliament of Georgia at the moment he joined a peaceful demonstration. That demonstration had been planned by a number of young opposition activists, including the applicant, who wished to denounce publicly the allegedly excessive use of force by the police during dispersal of another, larger manifestation of opposition forces which had occurred on 26 May 2011.

5. Later in the evening of the same day, at around 8.00 p.m., the applicant was tried by the Tbilisi City Court. After having heard his statements, who was assisted by a qualified lawyer of his choice, the police officers who had effectuated the applicant's arrest, as well as a number of independent witnesses, the court found the applicant guilty, under Article 166 and 173 of the Code of Administrative Offences, of administrative offences of breach of public order and disobedience with police officers' lawful orders. In particular, the impugned actions consisted, according to the court's findings, in the applicant's preferring insults in a public setting and refusing to desist from that wrongful activity even after the police officers' instruction to do so. He was sentenced to ten days' of administrative detention.

6. The applicants' appeal against his conviction was dismissed as manifestly ill-founded by the Tbilisi Court of Appeals on 8 July 2011.

THE LAW

7. On 1 December 2014 the complaints concerning the applicant's rights to freedom expression and freedom of peaceful assembly were communicated to the Government under Articles 10 and 11 of the Convention, whilst the remainder of the application, notably the complaints under Articles 3, 5, 6 and 14 of the Convention, was declared inadmissible by the President of the Section, sitting in a single-judge formation. The applicant's representatives were informed of that decision by the Court's letter of 4 December 2014.

8. After the communication of the application, by a letter of 3 April 2015 the Government informed the Court that they proposed to make a unilateral declaration with a view to resolving the issue raised by the application.

9. To that end, the Government acknowledged a violation of the applicant's right guaranteed by Article 11 of the Convention. They undertook to the applicant 1,000 (one thousand) euros to cover any and all pecuniary and non-pecuniary damage as well as costs and expenses, which will be converted into the national currency at the rate applicable on the date of payment, and will be free of any taxes that may be applicable and payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. They further requested the Court to strike out the application.

10. By a letter of 6 June 2015 the applicant indicated that he was not satisfied with the terms of the unilateral declaration on the ground that the Government's did not address the other complaints which he had made in his initial application to the Court, notably those under Articles 3, 5, 6 and 14 of the Convention. Furthermore, as the Government were expected to acknowledge violations of all those additional complaints, the amount of the compensation should, in the applicant's view, be higher than that proposed in the unilateral declaration.

11. The Court reiterates that Article 37 of the Convention provides that it may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to one of the conclusions specified, under (a), (b) or (c) of paragraph 1 of that Article. Article 37 § 1 (c) enables the Court in particular to strike a case out of its list if:

> "for any other reason established by the Court, it is no longer justified to continue the examination of the application".

12. It also reiterates that in certain circumstances, it may strike out an application under Article 37 § 1 (c) on the basis of a unilateral declaration by a respondent Government even if the applicant wishes the examination of the case to be continued. The Court further recalls that it may accept a unilateral declaration even in the absence of prior friendly settlement negotiations (see *Union of Jehova's Witnesses and Others v. Georgia* (dec.), no. 72874/01, §§ 23-30, 21 April 2015).

13. To this end, the Court has examined the declaration in the light of the principles emerging from its case-law, in particular the *Tahsin Acar* judgment (see *Tahsin Acar v. Turkey* (preliminary issues) [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI; *WAZA Spółka z o.o. v. Poland* (dec.), no. 11602/02, 26 June 2007; and *Sulwińska v. Poland* (dec.), no. 28953/03, 18 September 2007).

14. At the outset, the Court notes that since the case relates to the applicant's inability to participate in a public assembly, the Government's declaration acknowledging a violation of Article 11 of the Convention is sufficient, as the latter provision is the *lex specialis* in the present case, and it is unnecessary to take the complaint under Article 10 into consideration separately (see, for instance, *Ezelin v. France*, 26 April 1991, §§ 35 and 37, Series A no. 202).

15. As regards the applicant's arguments, the Court does not consider them as a valid objection capable of outweighing the Government's unilateral declaration. It first considers that the Government's acknowledgment of a violation of Article 11 of the Convention is sufficiently clear and broad to cover all the relevant circumstances of the case. As regards the applicant's reference to the other complaints which had initially been made in his application to the Court, the Court recalls that that

part of the application was already examined and declared inadmissible (see paragraph 7 above) by the President of the Section, sitting in a single-judge formation, on 1 December 2014.

16. The Court has established in a number of cases, including those brought against Georgia, its practice concerning complaints about the administrative arrest and detention as a means of interference with the right to hold a peaceful demonstration, in breach of Article 11 of the Convention (see, for example, *Kakabadze and Others v. Georgia*, no. 1484/07, §§ 84-93, 2 October 2012; *Osmani and Others v. "the former Yugoslav Republic of Macedonia"* (dec.), no. 50841/99, ECHR 2001-X; *Galstyan v. Armenia*, no. 26986/03, §§ 100-102, 15 November 2007; *Ashughyan v. Armenia*, no. 33268/03, §§ 75-77, 17 July 2008; and *Sergey Kuznetsov v. Russia*, no. 10877/04, § 36, 23 October 2008).

17. Having regard to the nature of the admissions contained in the Government's declaration, as well as the amount of compensation proposed – which is fully adequate in the particular circumstances of the present case – the Court considers that it is no longer justified to continue the examination of the application (Article 37 § 1 (c)).

18. Moreover, in light of the above considerations, and in particular given the clear and extensive case-law on the topic, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the application (Article 37 § 1 *in fine*).

19. Finally, the Court emphasises that, should the Government fail to comply with the terms of their unilateral declaration, the application could be restored to the list in accordance with Article 37 § 2 of the Convention (see *Josipović v. Serbia* (dec.), no. 18369/07, 4 March 2008).

For these reasons, the Court, unanimously,

Takes note of the terms of the respondent Government's declaration under Article 11 of the Convention and of the modalities for ensuring compliance with the undertakings referred to therein;

Decides to strike the application out of its list of cases in accordance with Article 37 § 1 (c) of the Convention.

Done in English and notified in writing on 23 July 2015.

Fatoş Aracı
Deputy Registrar

Paul Mahoney
President